

SOTOMAYOR, J., dissenting

Department officials.” *Ante*, at 621. That conception of core immunity expands the “conclusive and preclusive” category beyond recognition, foreclosing the possibility of prosecution for broad swaths of conduct. Under that view of core powers, even fabricating evidence and insisting the Department use it in a criminal case could be covered. The majority’s conception of “core” immunity sweeps far more broadly than its logic, borrowed from *Youngstown*, should allow.

The majority tries to assuage any concerns about its made-up core immunity by suggesting that the Government agrees with it. See *ante*, at 634. That suggestion will surprise the Government. To say, as the Government did, that a “small core of exclusive official acts” such as “the pardon power, the power to recognize foreign nations, the power to veto legislation, [and] the power to make appointments” cannot be regulated by Congress, see Tr. of Oral Arg. 85–87, does not suggest that the Government agrees with immunizing any and all conduct conceivably related to the majority’s broad array of supposedly “core” powers. The Government in fact advised this Court to “leav[e] potentially more difficult questions” about the scope of any immunity “that might arise on different facts for decision if they are ever presented.” Brief for United States 45. That would have made sense. The indictment here does not pose any threat of impermissibly criminalizing acts within the President’s “conclusive and preclusive” authority. Perhaps for this reason, even Trump discouraged consideration of “a narrower scope of immunity,” claiming that such an immunity “would be nearly impossible to fashion, and would certainly involve impractical line-drawing problems in every application.” Brief for Petitioner 43–44.

When forced to wade into thorny separation-of-powers disputes, this Court’s usual practice is to “confine the opinion only to the very questions necessary to decision of the case.” *Dames & Moore v. Regan*, 453 U.S. 654, 661 (1981). There is plenty of peril and little value in crafting a core immunity